



File No.: EXP202304518

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 8, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CREMA GAMES, S.L. (hereinafter, CREMA GAMES). After notifying the initiation agreement and analyzing the allegations presented, on March 5, 2025, the resolution proposal was issued, which is transcribed below:

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File No.: EXP202304518

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the data protection authority of the Netherlands. The complaint is directed against CREMA GAMES, S.L. with NIF B86562139

(hereinafter, CREMA GAMES). The reasons on which the complaint is based are as follows:

The complainant states that on January 21, 2023, they exercised their right of access against CREMA GAMES via email. In an email dated January 23, 2023, the entity informed them that their accounts with the controller had been suspended for violating their terms of use and provided what they call anonymous identifications in the game, which they assert are not associated with other data. They also informed that, following the complainant's email, they now have that data.

After an exchange of emails, CREMA GAMES requests the complainant for identification in order to provide more data, sending them an identification document with several data redacted.

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Along with the complaint, the following documents are submitted, among others:

- Copy of the email sent by the complainant from ***EMAIL.1 on January 21, 2023, at 21:15 hours to CREMA GAMES. Its content is as follows (unofficial translation, the original in English):

“To whom it may concern:

I hereby request, in accordance with Article 15 of the GDPR. Please confirm whether or not you are processing personal data (as defined in Article 4, paragraphs 1 and 2, of the GDPR) concerning me. If you are, please, in accordance with Article 15 (3) of the GDPR, provide me with a copy of all personal data concerning me that you are processing, including any potential pseudonymized data about me in accordance with Article 4, paragraph 5, of the GDPR. Additionally, I request access to the following information in accordance with Article 15, paragraph 1, of the GDPR:

1. The purposes of the processing;
2. The categories of personal data concerned;
3. The recipients or categories of recipients to whom the personal data have been communicated or will be communicated;
4. When possible, the expected period for which the personal data will be disclosed or are to be disclosed;
5. When the personal data are not collected from the data subject, any available information as to their source;
6. The existence of automated decision-making, including profiling referred to in Article 22, paragraphs 1 and 4, of the GDPR and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for me.

If you are processing anonymous data concerning me, please not only inform me about that but also explain the procedure used in an easily understandable manner.

If you are transferring my personal data to a third country or to an international organization, I request to be informed about the appropriate safeguards in accordance with Article 46 of the GDPR in relation to the transfer.

[Please provide me with the personal data concerning me that I have provided to you, in a structured, commonly used, and machine-readable format, as set out in Article 20, paragraph 1, of the GDPR]

My request explicitly includes other services and companies for which you are the data controller, as defined in Article 4, paragraph 7, of the GDPR.

According to Article 12 (3) of the GDPR, you must provide me with the requested information without undue delay and in any case within one month of receiving the request. In accordance with Article 15, paragraph 3, of the GDPR, you must respond to this request at no cost to me.

I am including the following necessary information to identify myself:

Please enter your identification details here. This often includes information such as your name, date of birth, address, etc.

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3/32

If you do not respond to my request within the indicated timeframe, I reserve the right to take legal action against you and file a complaint with the responsible supervisory authority.

Thank you in advance. Yours sincerely, A.A.A.”

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Copy of the email sent from support@cremagames.com to the claimant (**EMAIL.1) on January 21, 2023, at 21:16 hours, stating: “Your request ((...)) has been updated. To add additional comments, please reply to this email.”

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Copy of the email sent from support@cremagames.com to the claimant (**EMAIL.1) on January 23, 2023, at 13:25 hours. Its content informs the claimant as follows (unofficial translation, the official is in English):

“Finally, in accordance with your request, in the exercise of your right of access, pursuant to Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the only data we have processed about you to date are your anonymous identifiers in the game:

***IDENTIFIER.1 and ***IDENTIFIER.2, which we have not linked to any other personal data that could identify you in any case. The IDs from your game store platform (we do not control the store nor does it belong to us) are: ***ID.1 and ***ID.2 respectively. We inform you that these are anonymous numbers and we do not process any further information. As you have written to us, we use your email solely for the purpose of responding to your email, although we also have no way of verifying that it belongs to the anonymous user ***IDENTIFIER.1 or the anonymous user ***IDENTIFIER.2. Therefore, we will not register it in our databases. We no longer have any personal data about you. We only process internal and professional information regarding activities carried out in a virtual world by anonymous users.”

-

Copy of the email sent by the claimant (**EMAIL.1) to support@cremagames.com on January 23, 2023, at 14:30 hours, in which the claimant demands to expand CREMA GAMES' response as follows (unofficial translation, the official is in English):

“This response does not comply with the provisions of the GDPR. According to the GDPR, you must provide all information that can identify a person (under the GDPR, identification only includes distinguishing them from another user) and any data related to a person. Due to the statements made by Crema employees, you now have more information about me than you have shared, which is not in accordance with the GDPR. Some examples of data that you have not provided that you collect and process: Location data. You will have IP addresses and approximate geolocation data, and it is likely

that this data is stored. These are data that are listed in the GDPR as a direct example of identifying data. Web Cookies. I have visited your forums, so they stored, even temporarily and automatically, and processed my personal data. You have not provided me with the information that you have processed.

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4/32

Pseudonyms are also identifiable data, so you are obliged to provide me with all the information related to the processing of such personal data. This is the most redundant item on this list, but it remains a violation on your part. This list of examples is NOT exhaustive.

Furthermore, the claiming party indicates as an example of possible collection of personal data the following excerpt from the Privacy Policy of CREMA GAMES (unofficial translation, the official one in English):

“Personal Information: specific identifiable information about you that can be used by itself to identify, contact, or locate you (for example, your name, postal address, email address, screen name, social network site identifier, phone number, photograph(s), date of birth, gender, or social network friends connections. CremaGames may use the personal information collected to analyze the use of the services, provide technical support and customer service. When you use our online game, we also collect personal data such as your ‘IP’, ‘MAC’, and other personal data you may provide when using our integrated chat (username, avatar, and other similar information) or that may be captured through cookies and other technologies to analyze the use of the services provided to the customer, provide customer support or technical assistance, and enable the use of our applications.”

- Copy of the email sent from support@cremagames.com to the claiming party (**EMAIL.1) on January 23, 2023, at 14:30 hours, stating: “Your request ((...)) has been updated. To add additional comments, please reply to this email.”

- Copy of the email sent by the claiming party (**EMAIL.1) to support@cremagames.com on February 10, 2023, at 16:49 hours, in which the claiming party states the following regarding the follow-up of their request (unofficial translation, the official one in English):

“Since Crema has not only refused to provide personal data under the veiled lie that all of it is anonymized, despite an example from the privacy policy stating that ‘personal information may occasionally be disclosed in accordance with applicable law and this privacy policy. We may combine non-personal information with personal information.’ there has also been no follow-up communication after the unsatisfactory response. This email is intended to inform you that these communications have been forwarded to the competent authorities through a complaint and a request for a more in-depth investigation. I will no longer send emails regarding Crema's specific GDPR violation.”

- Copy of the email sent from support@cremagames.com to the claiming party (**EMAIL.1) on February 20, 2023, at 08:08 hours, in which CREMA GAMES acknowledges receipt of the email sent by the claiming party and requests that they unequivocally identify themselves in order to exercise their rights as follows (unofficial translation, the official one in English):

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5/32

"We acknowledge receipt of your communication and inform you (in accordance with the provisions of Article 12, paragraph 6, and 'Recital 64' of the GDPR) that if you wish to exercise any of your data protection rights, especially those provided for in Article 15 of the GDPR, you must unequivocally demonstrate your identity and send us a signed request for the right you wish to exercise, detailing all the information that allows us to identify the subject of your request.

If the request is made by a person other than the interested party, they must duly demonstrate the granted representation."

In the email signature footer, the following is indicated regarding the exercise of rights concerning personal data protection (unofficial translation, the official version is in English):

"We inform you that you can exercise your rights of access, rectification, portability, and deletion of your data, as well as the rights of limitation and opposition to its processing, by contacting the data controller at support@cremagames.com. If you believe that the processing does not comply with current regulations, you can file a complaint with the supervisory authority at www.aepd.es."

- Copy of the email sent by the claimant (**EMAIL.1) to support@cremagames.com on February 20, 2023, at 08:13 hours, in which they respond to the previous email requesting more information on how to identify themselves. Specifically, they request to be informed about what information they need to provide to verify their identity, how they would like to receive it, and the methods they should use to ensure that it is received.

- Copy of two emails sent by the claimant (**EMAIL.1) to support@cremagames.com on February 20, 2023, at 08:31 and 08:47 hours, in which the claimant complains about the barriers that CREMA GAMES is putting in place to comply with the right of access and requests that their data not be deleted as it would be a violation of Article 18 of the GDPR.

- Copy of the email sent from support@cremagames.com to the claimant (**EMAIL.1) on February 21, 2023, at 12:00 hours, with the following message (unofficial translation, the official version is in English):

"In no case does CREMA GAMES intend to hinder or delay the exercise of your right of access to the requested information, but, as you yourself acknowledge in your request of January 22 (07:34), we need additional information to be able to verify the identity of the person to whom we will provide the requested data (as you wrote: 'If requested, I will provide more information to verify my identity'). This is because the GDPR establishes it, and we must have guarantees in this way. Our intention is to grant you the right of access as soon as you identify yourself, through this same means (by email responding to this message).

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6/32

To this end, we request a copy of a document that verifies your identity in your country of residence. You may use your passport, identity card, or driver's license. As you know, in the form or model you used in your initial request, you did not attach any type of personal information that would allow us to verify your identity. Once we have been able to verify your identity, linking it to the user, we will provide you with the information requested in your GDPR data request communication in accordance with the provisions of the GDPR."

- Copy of the email sent by the claimant (**EMAIL.1) to support@cremagames.com on February 21, 2023, at 12:51 hours, in which the following is indicated (unofficial translation, the official version is in English):

"In the attachment, I have provided a redacted version of my document. It contains my initials, the country that issued it, and my date of birth. I have redacted information that could be used in legal matters such as my national identification number, the date of issue, and my image. I have also dated and signed it and attached the identifiers associated with me. If you need it, I have the purchase receipts for the games of (...) and (...). However, I will assume that this is sufficient."

A photograph is attached showing a handwritten note dated February 21, 2023, with the identifiers ***IDENTIFICADOR.1 and ***IDENTIFICADOR.2 and appearing to be a signature. On it, there is an identity document from the Netherlands from which all data has been crossed out, except for the following (unofficial translation, the official version is in English):

- Name "...",
- Initial letters of the surnames "...",
- Country "...",
- Date of birth "...",

- Signature.
- Copy of the email sent by the claimant (**EMAIL.1) to support@cremagames.com on February 27, 2023, at 10:10 hours, in which, among other things, the claimant states that enough time has passed since they submitted the request on January 21, 2023, and the first response from CREMA on January 23, 2023, for them to have received a reply.
- Copy of the email sent from support@cremagames.com to the claimant (**EMAIL.1) on February 27, 2023, at 13:11 hours, with the following content (unofficial translation, the official version is in English): "Prior to this request, CremaGames has responsibly and transparently informed you about the general data processing it carries out on users of gaming operations, using numerical codes that are not associated with the identity of individuals, information that has been conveyed to you indicating that the data processed is anonymous.

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 7/32

CREMA GAMES, as the company responsible for the processing, and given the aforementioned lack of information that allows for the identification of the person exercising the right of access, is obliged to deny such request. However, it reiterates that if, as an interested party, you wish to initiate legal proceedings and formally exercise the right of access recognized by data protection regulations to data owners, you must provide a complete identification document that unequivocally identifies you in accordance with the law, and the responsible person will immediately send you the registered information regarding the user's activity.

In the event that you decide to file a complaint with the Dutch Data Protection Authority, Autoriteit Persoonsgegevens, AP, we hope to receive the transmission of such request to address the right you are exercising, in which you must reliably demonstrate your identity.

- Copy of three emails sent by the complainant (**EMAIL.1) to support@cremagames.com on February 27, 2023, at 13:46, 13:47, and 23:41 hours. Among other issues, the complainant points out that what CREMA GAMES is describing in its emails is not anonymous data processing but pseudonymized data processing, and provides a link to the guidelines on the exercise of rights of data subjects (https://edpb.europa.eu/our-work-tools/documents/public-consultations/2022/guidelines-0120-22-data-subject-rights-right_en) alleging the following clause (unofficial translation, the official one in English):

"73. It should be noted that the use of a copy of an identity document as part of the authentication process creates a risk to the security of personal data and may lead to unauthorized or unlawful processing, and therefore should be considered inappropriate unless it is strictly necessary, appropriate, and in accordance with national legislation. [...] it is also important to note that identification using an identity document does not necessarily help in the online context (for example, with the use of pseudonyms) [...].

75. In any case, information about the identifier that is not necessary to confirm the identity of the data subject [...] may be blocked or hidden by the data subject before presenting it to the data controller, unless national legislation requires a complete and unredacted copy of the identity document (see paragraph 77). [...]"

SECOND: Through the "Internal Market Information System" (hereinafter IMI), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on April 5, 2023, and was registered with the Spanish Data Protection Agency (AEPD) on April 11, 2023. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), having

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taking into account its cross-border nature and that this Agency is competent to act as the main supervisory authority, given that CREMA GAMES has its sole establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the data protection authority of the Netherlands, the authority of Norway. The latter under Article 4.22 of the GDPR, given that the individuals residing in the territory of this supervisory authority are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On April 14, 2023, in accordance with the then in-force Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), being aware of the following points:

1) On October 11, 2023, a consultation was made to the Privacy Policy in English available on the website <https://crema.gg/privacy-policy/>, in its version of March 6, 2022.

2) On October 25, 2023, this Agency received a written response to a request for information, submitted on behalf of CREMA GAMES, with entry registration number REGAGE(...), in which the following information was provided, among others:

- Statement that, up to the date of receipt of this request for information, CREMA GAMES is unaware of the identity of the individual who requested this exercise of the right of access to their data "since the individual never provided unequivocal and sufficient identification in the formal exercise of the right of access."

- Regarding the conditions appearing in the Privacy Policy, indication that "In these terms and policies, uses and data processing are defined from a maximum perspective, therefore if the person does not acquire the status of user in the services offered and/or voluntarily is not interested, their data will not be processed."

- Regarding the user license, declaration that "In the case of the user concerning the request for information by the AEPD, it has...

acquired their licenses and played through ***PLATFORM.1, this platform being, according to its own conditions, the one that handles the information related to the purchase and, therefore, the one that knows the user's identification. This information is not transmitted by the holder of the sales platform to CREMA GAMES (nor to any other video game creator), who only has a number associated with that download and a registration ID in the game, assigned to the user, visible to other players and always subject to prior acceptance of the terms of use that include the license agreement."

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Regarding the data of the claiming party, it is indicated that "Under no circumstances do the marketplaces provide CREMA GAMES with data related to the purchase or any other data that would allow the identification of the user or link them to an email address, phone number, or full name. CREMA GAMES does not know the identity of the users who use an ID, nor in this case, and only relates the ID to the claimant because they contact CREMA GAMES via email in their claim due to the

game block (See Document No. 5 _Previous Emails). Therefore, it is the claimant who claims to be the holder of those IDs, without CREMA GAMES having any means to verify the truthfulness of the information; thus, it cannot affirm that the IDs ***IDENTIFIER.1 and ***IDENTIFIER.2 belong to the claimant. For this reason, this mere declaration of ownership is not considered sufficient for addressing the right, and proof of identity is required; this lack of reason is why the need for proof of identity exists.”

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Regarding the use of this data by CREMA GAMES, it is stated that “The data associated with the IDs are related to the IP address, MAC number, and date and time of the connection to the game (login), without specific registration of data such as connection times. This data, along with other information about the game not related to individuals, is processed internally to verify the legal and ethical use of the game and to detect irregular or fraudulent behavior. As already indicated, CREMA GAMES is unaware of the identifying data corresponding to the user, and unless declared by the interested party themselves, CREMA GAMES has no way of knowing the real identity of the user linked to a code, which is completely anonymous.”

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A copy of the email sent by the claiming party from ***EMAIL.1 to support@cremagames.com on January 19, 2023, at 09:59 hours is provided, with the following content (unofficial translation, the original in English):

“Crema,

I sent a ban appeal more rambly before, without the appropriate subject so I will try again with a more eloquent one. The account in question is (you cannot access Tamer IDs unless you refer to usernames):

These are mine

* ***USER.1

* ***USER.2

Those of my partner

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10/32

* ***USER.3

* ***USER.4

I was doing PvP with ***USER.1 while using ***USER.2 to farm luma between turns. My partner was making stickers with ***USER.3 and ***USER.4. Just when we completed two sticker books, and I had just won a PvP, we started getting banned almost at the same time. In total, we have three systems together and four accounts. I have no idea what kind of cheating we would be doing at this moment. We hope it is just an error similar to that of cooperative players who are prohibited from smoke bombing and teleporting to the prison of (...).

The second thing we thought is that it might be due to the hours we have invested. My partner and I are NEETs, unemployed, uneducated, on welfare. We spend most of the day and night playing (...), making spreadsheets, and just... giving it our all. Aside from that, we leave (...) on, and sometimes we play through (...) and sometimes we fall asleep in the middle without closing the game, remaining in encounters, whatever.

Basically... (...) is running 24/7. We have nothing better to do with our lives, so suddenly receiving a ban while playing, making stickers left us stunned and quite excited. Please, please, come back to us and fix this, Crema. We beg you.

Sincerely,

(...)”

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A copy of the email sent by the claimant from ***EMAIL.1 to support@cremagames.com on January 19, 2023, at 10:01 hours is provided, with the following content (unofficial translation, the original in

English):

“Addendum; we have our Tamer IDs in case it makes it easier:

o

***USER.3: (...)

o

***USER.4: (...)

o

***USER.1: ***IDENTIFIER.1

o

***USER.2: ***IDENTIFIER.2”

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Regarding the responses given to the claimant, a statement that “In these communications, the right of the claimant is neither denied nor obstructed, but rather, based on the data protection regulations, CREMA GAMES requests the person, as the interested party holding rights, to verify their identity. It is considered, and this is communicated to the claimant, that it is the responsibility of the person who will attend to an exercise of rights not to have reasonable doubts, in this case generated by the course of previous communications with the interested party provided [...] regarding the identity of the person exercising the right. We also consider it the responsibility of CREMA GAMES to use reasonable measures to verify said identity, following the provisions of Article 12 of the GDPR, recitals 58 and 59, and Article 12 of the LOPDGDD, favoring the exercise by electronic means and the accreditation of the formalities by such means. CREMA GAMES has responded to the request for the exercise of rights, without any formal requirement beyond those established by the applicable regulations, denying access to the data until the interested party verifies their identity, since

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11/32

Although it is a unique ID, it is a public data and visible to other players, and if the right had been attended to without conclusive evidence of the identity of the interested party, it would imply that CREMA GAMES could be communicating data to unauthorized third parties, as anyone can know another's ID and request access to data that would involve communicating the IP address and MAC number of another user.” They indicate that, in the email sent by the claimant on February 21, 2023, to prove their identity, they attached “an identity document that only shows a first name, a date of birth, and initials, as well as a signature that does not match that of the paper on which the image is taken.”

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Regarding the response to the claimant after receiving the information request from this Agency, the statement that “As a consequence of this request from the AEPD, CREMA GAMES is prepared to provide the interested party with the information they request in response to the exercised right and, consequently, is in a position to transfer to the claimant the requested information in the exercise of the right of access at the email addresses indicated. In this process, the following addresses of the claimant have been identified: ***EMAIL.1, (...). [...] For the moment, no response has been provided to the claimant regarding the transfer of the request by the AEPD. Prior to this request, information was provided in response to the request received by email from the account (...), received on March 6, 2023, and addressed on March 14, 2023, whose communications are attached.”

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A copy of the email sent by CREMA GAMES in response to the Netherlands SA regarding the right of access of the claimant is provided, in which it indicates, among other information, the following: “We specify that whoever exercises a right, following the provisions of the GDPR, the Spanish Law LOPDGDD, and as reflected in the exercise of rights model published by the AEPD, the applicant must be sufficiently identified. Thus, we have communicated to the person who addresses CREMA GAMES and requests the activity data in the game associated with a nickname, indicating that for us these are anonymous data, there is no link between the identity of a natural person and the user of the video

game, as the nickname is not associated with an email address, name, or other identifying data, making it impossible to verify the identity of the interested party by means other than a document proving identity.

This is the reason why, to proceed with the exercise of the right of access, and so that we know to whom we will provide information about activity in the game, we urge the applicant to correctly identify themselves (see attached email dated February 20, 2023, named identification request). The response from the claimant has been a photograph of an identity document in which the data that allows for the correct identification of the person to whom we would provide access to data is hidden (the response regarding identification is attached). CREMA GAMES, S.L., proceeded to notify the interested party that

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12/32

this formula does not constitute unequivocal identification, which is the reason for the response denying the right of access.”

- Declaration that CREMA GAMES does not have a data protection officer.

3) Version 1.0 of the guide “Guidelines 01/2022 on data subject rights - Right of access” [Unofficial translation: “Guide 01/2022 on rights of the data subject – Right of access”], in effect at the time the claimant submitted their complaint, is obtained.

Paragraph 76 of this guide has the following content (unofficial translation, the original in English): “In any case, information about the identifier that is not necessary to confirm the identity of the data subject, such as access number and serial number, nationality, height, eye color, photograph, and machine-readable zone, may be omitted or hidden by the data subject before presenting it to the data controller, unless national legislation requires a complete and unredacted copy of the identity document (see paragraph 77). Generally, the date of issue or expiration, the issuing authority, and the full name matching the online account are sufficient for the data controller to verify identity, provided the authenticity of the copy and the relationship to the requester are guaranteed. Additional information, such as the date of birth of the data subject, may only be required if there remains a risk of identity error, if the data controller can compare it with the information it already processes.”

4) On December 20, 2023, the Monitoriza service of Axesor was consulted regarding CREMA GAMES. In the “Sales” section, an amount of (...)€ appears.

FIFTH: On April 5, 2024, the Director of the Spanish Agency for Data Protection adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on April 8, 2024, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of the proceedings was automatically suspended during these four weeks, in accordance with the provisions of Article 64 of the LOPDGDD.

Within the deadline for this purpose, the interested supervisory authorities did not submit relevant and justified objections in this regard, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

SIXTH: On May 8, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CREMA GAMES, S.L., in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR.

This initiation agreement, which was notified to CREMA GAMES in accordance with the established rules of LPACAP, was recorded on May 8, 2024, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On May 21, 2024, a letter from CREMA GAMES was received by this Agency, in due time and form, in which it made allegations against the initiation agreement.

In these allegations, in summary, it stated that:

- Reiteration of the content of the Response to the Request from this Agency.
- CREMA GAMES cannot identify the person through the authentication mechanism it uses each time it logs into the game, because that process takes place on the distributor's platform (...), and the defendant entity does not have access to that information.
- The user does not execute or employ any authentication mechanism against CREMA GAMES.
- CREMA GAMES justifies its actions in application of paragraphs 70 and 76 of the "Guidelines 01/2022 on data subject rights - Right of Access. Version 1.0."
- CREMA GAMES insists that it has not refused to comply with the right of access, nor does it intend to obstruct access to the information; as well as its intention to respond.

SEVENTH: Attached as an annex is a list of documents in the proceedings.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On January 19, 2023, at 09:59 hours, the claimant sent from ***EMAIL.1 to CREMA GAMES (support@cremagames.com) an email with the following content (unofficial translation, the original in English):

"Crema,

I sent a ban appeal more rambly before, without the proper subject so I will try again with a more eloquent one. The account in question is (you cannot access Tamer IDs unless you refer to usernames):

These are mine

* ***USER.1

* ***USER.2

Those of my partner

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14/32

* ***USER.3

* ***USER.4

I was doing PvP with ***USER.1 while using ***USER.2 to farm luma between turns. My partner was making stickers with ***USER.3 and ***USER.4. Just when we completed two sticker books, and I had just won a PvP, we started getting banned almost at the same time. In total, we have three systems together and four accounts. I have no idea what kind of cheating we would be doing at this moment. We hope it is just an error similar to that of cooperative players who are banned for smoke bombing and teleporting to the prison of (...).

The second thing we thought is that it might be due to the hours we have invested. My partner and I are NEETs, unemployed, uneducated, on welfare. We spend most of the day and night playing (...), making spreadsheets, and just... giving it our all. Aside from that, we leave (...) on, and sometimes we play through (...) and sometimes we fall asleep in the middle without closing the game, remaining in encounters, whatever.

Basically... (...) is running 24/7. We have nothing better to do with our lives, so suddenly receiving a ban while playing, making stickers left us stunned and quite excited. Please, please, come back to us and fix this, Crema. We beg you.

Sincerely,

(...)"

SECOND: On January 19, 2023, at 10:01 hours, the claimant (***EMAIL.1) sent another email to CREMA GAMES (support@cremagames.com) with the following content (unofficial translation, the original in English):

"Addendum; we have our Tamer IDs in case it makes it easier:

- ***USER.3: (...)

- ***USER.4: (...)

- ***USER.1: ***IDENTIFIER.1

- ***USER.2: ***IDENTIFIER.2”

THIRD: On January 21, 2023, at 21:15 hours, the claimant (***EMAIL.1) sent an email to CREMA GAMES with the following content (unofficial translation, the original in English):

“To whom it may concern:

I hereby request in accordance with Article 15 of the GDPR. Please confirm whether or not you are processing personal data (as defined in Article 4, paragraphs 1 and 2, of the GDPR) concerning me. If you are, please, in accordance with Article 15 (3) of the GDPR, provide me with a copy of all personal data concerning me that you are processing, including any potential pseudonymized data about me in accordance with Article 4, paragraph 5, of the GDPR. Additionally, I request access to the following information in accordance with Article 15, paragraph 1, of the GDPR:

1. The purposes of the processing;

C/ Jorge Juan, 6

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28001 – Madrid

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15/32

2. The categories of personal data concerned;

3. The recipients or categories of recipients to whom the personal data have been communicated or will be communicated;

4. Where possible, the period for which the personal data have been disclosed or will be disclosed;

5. When the personal data have not been collected from the data subject, any available information about their source;

6. The existence of an automated decision-making process, including profiling referred to in Article 22, paragraphs 1 and 4, of the GDPR and, at least in those cases, significant information about the logic involved, as well as the significance and expected consequences of such processing for me.

In the event that you are processing anonymous data concerning me, not only should you inform me of this, but you should also explain the procedure used in an easily understandable manner.

If you are transferring my personal data to a third country or to an international organization, I request that you inform me about the appropriate safeguards in accordance with Article 46 of the GDPR regarding the transfer.

[Please provide me with the personal data concerning me that I have provided to you, in a structured, commonly used, and machine-readable format, as set out in Article 20, paragraph 1, of the GDPR.]

My request explicitly includes other services and companies for which you are the data controller, as defined in Article 4, paragraph 7, of the GDPR.

According to Article 12 (3) of the GDPR, you must provide me with the requested information without undue delay and in any case within one month of receiving the request. In accordance with Article 15, paragraph 3, of the GDPR, you must respond to this request at no cost to me.

I am including the following information necessary for my identification:

Please enter your identification details here. This often includes information such as your name, date of birth, address, etc.

If you do not respond to my request within the indicated timeframe, I reserve the right to take legal action against you and to file a complaint with the relevant supervisory authority.

Thank you in advance. Yours sincerely, A.A.A.”

FOURTH: On January 21, 2023, at 21:16 hours, CREMA GAMES (support@cremagames.com) sent an email to the claimant (***EMAIL.1) stating: “Your request ((...)) has been updated. To add additional comments, please reply to this email.”

FIFTH: On January 23, 2023, at 13:25 hours, CREMA GAMES (support@cremagames.com) sent an email to the claimant (***EMAIL.1) with the following content (unofficial translation, the official one in English):

“Finally, in accordance with your request, in exercising your right of access, in accordance with Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the only data we process about you to date are your anonymous identifiers in the game: ***IDENTIFIER.1

and ***IDENTIFIER.2, which we have in no case linked to other personal data that could identify you. The IDs of your game store platform.”

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28001 – Madrid
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16/32

(we do not control the store nor does it belong to us) are: ***ID.1 and ***ID.2 respectively. We inform you that these are anonymous numbers and we do not process any further information. As you have written to us, we use your email solely for the purpose of responding to your email, although we also have no way of verifying that it belongs to the anonymous user ***IDENTIFICADOR.1 or the anonymous user ***IDENTIFICADOR.2. Therefore, we will not register it in our databases. We no longer have any personal data about you. We only process internal and professional information regarding activities carried out in a virtual world by anonymous users.

SIXTH: On January 23, 2023, at 14:30 hours, the claimant (***EMAIL.1) sent an email to CREMA GAMES (support@cremagames.com) demanding an extension of CREMA GAMES' response as follows (unofficial translation, the official one in English):

“This response does not comply with the provisions of the GDPR. In accordance with the GDPR, you must provide all information that can identify a person (under the GDPR, identification only includes your differentiation from another user) and any data related to a person. Due to the statements made by Crema employees, you now have more information about me than you have shared with me, which is not in compliance with the GDPR. Some examples of data that you have not provided me that you collect and process: Location data. You will have IP addresses and approximate geolocation data, and it is likely that this data is stored. This is data that is listed in the GDPR as a direct example of identifiable data. Web Cookies. I have visited your forums, so you stored, even temporarily and automatically, and processed my personal data. You have not provided me with the information that you have processed. Pseudonyms are also identifiable data, so you are obliged to provide me with all information related to the processing of such personal data. This is the most redundant of this list, but it is still a breach on your part. This list of examples is NOT exhaustive.”

Furthermore, the claimant indicated as an example of possible collection of personal data the following excerpt from the Privacy Policy of CREMA GAMES (unofficial translation, the official one in English):

“Personal information: specific identifiable information about you that can be used on its own to identify, contact, or locate you (for example, your name, postal address, email address, screen name, social network site identifier, phone number, photograph(s), date of birth, gender, or social network friends connections. CremaGames may use the personal information collected to analyze the use of the services, provide technical support and customer service. When you use our online game, we also collect personal data such as your 'IP', 'MAC', and other personal data that you may provide when using our integrated chat (username, avatar, and other similar information) or that may be collected through cookies and other technologies to analyze the use of the services provided to customers, provide customer support or technical support, and enable the use of our applications.”

SEVENTH: On January 23, 2023, at 14:30 hours, CREMA GAMES (support@cremagames.com) sent an email to the claimant (***EMAIL.1) a letter.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/32

electronic in which it indicated: “Your request ((...)) has been updated. To add additional comments, please reply to this email.

EIGHTH: On February 10, 2023, at 16:49 hours, the claimant (***EMAIL.1) sent an email to CREMA GAMES (support@cremagames.com) in which the claimant indicated the following regarding the follow-up of their request (unofficial translation, in English the official): “Given that Crema has not only refused to provide personal data under the veiled lie that all of it is anonymized, despite an example

from the privacy policy stating that 'personal information may occasionally be disclosed in accordance with applicable law and this privacy policy. We may combine non-personal information with personal information.' there has also been no follow-up communication after the unsatisfactory response. This email is intended to inform you that these communications have been forwarded to the competent authorities through a complaint and a request for a deeper investigation. I will no longer send emails regarding Crema's specific non-compliance with the GDPR."

NINTH: On February 20, 2023, at 08:08 hours, CREMA GAMES (support@cremagames.com) sent an email to the claimant (***EMAIL.1) in which CREMA GAMES acknowledged receipt of the email sent by the claimant and requested that they unequivocally identify themselves in order to exercise their rights as follows (unofficial translation, in English the official): "We acknowledge receipt of your communication and inform you (in accordance with the provisions of Article 12, paragraph 6, and 'recital 64' of the GDPR) that if you wish to exercise any of the data protection rights, especially those provided for in Article 15 of the GDPR, you must unequivocally demonstrate your identity and send us a signed request for the right you wish to exercise, detailing all the data that allows us to identify the subject of your request.

If the request is made by a person other than the data subject, they must duly demonstrate the granted representation."

In the footer of the email, it was indicated regarding the exercise of rights in relation to personal data protection the following (unofficial translation, in English the official): "We inform you that you can exercise the rights of access, rectification, portability, and deletion of your data, as well as the rights of limitation and opposition to its processing, by contacting the data controller at support@cremagames.com. If you believe that the processing does not comply with current regulations, you can file a complaint with the supervisory authority at www.aepd.es."

TENTH: On February 20, 2023, at 08:13 hours, the claimant (***EMAIL.1) sent an email to CREMA GAMES (support@cremagames.com) in which they responded to the previous email requesting more information on how to identify themselves. Specifically, they requested to be told what...

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www.aepd.es
28001 – Madrid
sedeagpd.gob.es
18/32

information that needed to be provided to verify their identity, how they wanted to receive it, and the methods that should be used to ensure that they received it.

ELEVENTH: On February 20, 2023, at 08:31 and 08:47 hours, the claimant (***EMAIL.1) sent two emails to CREMA GAMES (support@cremagames.com) in which the claimant complained about the barriers that CREMA GAMES was putting in place to comply with the right of access and requested that their data not be deleted as it would be a violation of Article 18 of the GDPR.

TWELFTH: On February 21, 2023, at 12:00 hours, CREMA GAMES (support@cremagames.com) sent an email to the claimant (***EMAIL.1) with the following message (unofficial translation, the official one in English):

"In no case does CREMA GAMES intend to hinder or delay the exercise of your right of access to the requested information, but, as you yourself acknowledge in your request of January 22 (07:34), we need additional information to be able to verify the identity of the person to whom we will provide the requested data (as you wrote: 'If requested, I will provide more information to verify my identity'). This is because the GDPR establishes it, and we must have guarantees in this way. Our intention is to grant you the right of access as soon as you are identified, through this same means (by email responding to this message).

To this end, we request a copy of a document that verifies your identity in your country of residence. You can use your passport, identity card, or driver's license. As you know, in the form or model you used in your initial request, you did not attach any type of personal information that would allow us to verify your identity. Once we have been able to verify your identity, linking it to the user, we will provide you with the requested information in your communication of the GDPR data request in accordance with the provisions of the GDPR."

THIRTEENTH: On February 21, 2023, at 12:51 hours, the claimant (**EMAIL.1) sent an email to CREMA GAMES (support@cremagames.com) indicating the following (unofficial translation, the official one in English):

"In the attachment, I have provided a redacted version of my document. It contains my initials, the country that issued it, and my date of birth. I have redacted information that could be used in legal matters such as my national identification number, the date of issue, and my image. I have also dated and signed it and attached the identifiers associated with me. If needed, I have the purchase receipts for the games of (...) and (...). However, I will assume that this is sufficient."

A photograph was attached showing a handwritten note dated February 21, 2023, with the identifiers ***IDENTIFICADOR.1 and ***IDENTIFICADOR.2 and appearing to be a signature. On it, there was a Dutch identity document from which all data was crossed out, except for the following (unofficial translation, the official one in English):

- Name "...",
- Initial letters of the surnames "...".

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www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/32

- Country "...".
- Date of birth "...".
- Signature.

FOURTEENTH: On February 27, 2023, at 10:10 AM, the claimant (**EMAIL.1) sent an email to CREMA GAMES (support@cremagames.com) in which, among other things, the claimant stated that sufficient time had passed since their request on January 21, 2023, and CREMA's first response on January 23, 2023, for them to have received a reply.

FIFTEENTH: On February 27, 2023, at 1:11 PM, CREMA GAMES (support@cremagames.com) sent an email to the claimant (**EMAIL.1) with the following content (unofficial translation, the official one in English):

"Prior to this request, CremaGames has responsibly and transparently informed you about the general processing of data it carries out on users of gaming operations, using numerical codes that are not associated with the identity of individuals, information that has been communicated to you indicating that the data it processes is anonymous.

CREMA GAMES, as the company responsible for processing, and given the aforementioned lack of information that allows identifying the person exercising the right of access, is obliged to deny this request. However, it reiterates that if you, as an interested party, wish to initiate legal proceedings and formally exercise the right of access recognized by data protection regulations to data owners, you must provide a complete identification document that unequivocally identifies you in accordance with the law, and the responsible person will immediately send you the registered information regarding the user's activity.

Should you decide to file a complaint with the Dutch data protection authority, Autoriteit Persoonsgegevens, AP, we expect to receive the transmission of that request to address the right you are exercising, in which you must reliably demonstrate your identity."

SIXTEENTH: On February 27, 2023, at 1:46 PM, 1:47 PM, and 11:41 PM, the claimant (**EMAIL.1) sent three emails to CREMA GAMES (support@cremagames.com). Among other issues, the claimant pointed out that what CREMA GAMES is describing in its emails is not anonymous data processing but pseudonymized data processing, and provided a link to the guidelines on the exercise of rights of data subjects (https://edpb.europa.eu/our-work-tools/documents/public-consultations/2022/guidelines-012022-data-subject-rights-right_en) alleging its clause (unofficial translation, the official one in English):

"73. It is noteworthy that the use of a copy of an identity document as part of the authentication

process creates a risk to the security of personal data and may lead to unauthorized or unlawful processing, so it should be considered inappropriate unless it is strictly necessary, appropriate, and in accordance with national legislation. [...] It is also important to note that identification by means of an identity document does not necessarily help in the online context (for example, with the use of pseudonyms) [...].

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

20/32

75. In any case, information about the identifier that is not necessary to confirm the identity of the data subject [...] may be blocked or hidden by the data subject before presenting it to the data controller, unless national legislation requires a complete and unredacted copy of the identity document (see paragraph 77). [...].

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Preliminary issues

Article 4.1) of the GDPR defines “personal data” as:

“any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

Article 4.2) of the GDPR defines “processing” as:

“any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

21/32

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since CREMA GAMES collects and retains the IP address, among other data. Article 4.7 of the GDPR defines the “data controller” or “controller” as:

“the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.”

Article 4.8 of the GDPR defines the "data processor" or "processor" as:

"the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller."

CREMA GAMES carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

Furthermore, this is a cross-border processing, given that CREMA GAMES is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23, in relation to the competence of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by that controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, CREMA GAMES has its only establishment in Spain, therefore the Spanish Data Protection Agency is competent to act as the lead supervisory authority.

On its part, Article 15 of the GDPR regulates the right of access of the data subject to their personal data.

III

Allegations to the initiation agreement

In relation to the allegations made regarding the initiation agreement of the present sanctioning procedure, a response is provided to them.

CREMA GAMES alleges that it only has a user ID (in this case, ***IDENTIFIER.1 and ***IDENTIFIER.2) that associates with the anonymous numerical code communicated to it (...) ("(...)") each time a user acquires their game license through said platform and needs to be granted access.

That user ID

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

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22/32

is a unique number, but it can be public, visible in the game to other players, with players commonly disclosing it in chats and forums. CREMA GAMES insists that it only processes data related to that user ID, including the date and time of the connection start (from the number associated with the download), IP address, Mac number, and other game-related information not referring to individuals, which is processed internally to verify the legal and ethical use of the game and to detect irregular or fraudulent behaviors. It understands that this information is not sufficient to verify the identity of the person exercising the right of access via email on January 21, 2023, and therefore requested the applicant to unequivocally identify themselves, suggesting as possible identifying documents those that would be sufficient in their country to prove identity. It is true that the claimant provided the identifying document by crossing out their full name, the date of issue/expiration, and the document number, but the fact is that even if they had not done so, the responding entity would not have been able to verify that information against anything because it did not have those reference data.

CREMA GAMES explains that it cannot use the authentication mechanism through which users log into its gaming platform as a means of verifying identity, because that process takes place on the distribution platform (...), and the information related to it is not exchanged with the responding entity. Moreover, CREMA GAMES does not execute or employ any such mechanism with users.

Finally, CREMA GAMES emphasizes that it has not refused to address the right nor intends to obstruct access to information, having informed about the type of data being processed, as stated in communications with the individual, the Dutch authority, and this Agency; intending to provide an immediate response as evidenced in the responses sent to both authorities.

In this regard, this Agency wishes to point out that, while it is true that CREMA GAMES could request

additional information from the claimant due to existing doubts about their identity, it is equally true that the applicable regulations on the protection of personal data limit that request to the information that is necessary. In this case, CREMA GAMES did not comply with this last requirement, since none of the data contained in the document is in its possession and, therefore, would not serve to verify the identity of the interested party, regardless of those that were crossed out.

Furthermore, the fact that CREMA GAMES does not have access to the authentication mechanism used by users when logging into the game, nor does it have one in relation to them, does not imply that this can be used as a justification for not addressing requests for the exercise of rights recognized by the GDPR to the interested parties, as it is the data controller. This is established in section 66 of the "Guidelines 01/2022 on data subject rights - Right of access. Version 1.0", in effect at the time of the complaint submission, when it states: "There are often already authentication procedures in place between the interested parties and the data controllers. Data controllers can use these authentication procedures to determine the identity of the interested parties requesting their personal data or exercising the rights granted."

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

23/32

by the GDPR. Otherwise, the controllers must implement an authentication procedure to do so" (the underlining is from this Agency). Therefore, the lack of an authentication mechanism before CREMA GAMES cannot be an obstacle to the satisfaction of a right recognized to the data subjects by the GDPR.

Finally, this Agency insists that the actions of CREMA GAMES constitute an obstruction of the right of access, as it is futile to request the claimant for documentation that contains personal data that is unknown to CREMA GAMES and which, consequently, it will not be able to compare with the data in its possession. Moreover, the entity being claimed should have been aware that the information it can obtain from an identification document is not valid for the purpose of proving that the person requesting access to the personal data linked to IDs ***IDENTIFICADOR.1 and ***IDENTIFICADOR.2 is indeed who they claim to be.

For all the above reasons, the present allegations are dismissed.

IV

Right of access of the data subject

Article 15 "Right of access of the data subject" of the GDPR establishes:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data

subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In the present case, it is noted that on January 19, 2023, the claimant (**EMAIL.1) sent two emails to CREMA GAMES in which they provided, among other things, their usernames (**USUARIO.1 and **USUARIO.2) and their “Tamer IDs” (**IDENTIFICADOR.1 and **IDENTIFICADOR.2) due to the blocking experienced in the game. Subsequently, it is noted that on January 21, 2023, the claimant exercised their right of access before CREMA GAMES via email and that, on January 23, 2023, this entity informed them that the only data they have are their anonymous identifiers in the game (**IDENTIFICADOR.1 and **IDENTIFICADOR.2), which are not linked to any other personal data that could identify them. They also indicated that there are two other identifiers that use the “store platform ID” from which the games were purchased (**ID.1 and **ID.2).

Furthermore, it is noted that on February 20 and 21, 2023, CREMA GAMES requested the claimant to unequivocally identify themselves to provide more information, after the claimant expressed their disagreement with the response given by the entity to their access request; they were required to provide a copy of a document verifying their identity in their country of residence (passport, identity document, or driver's license).

On February 21, 2023, it is noted that the claimant sent an email to CREMA GAMES attaching an image showing a handwritten note from the same date, February 21, 2023, with the identifiers **IDENTIFICADOR.1 and **IDENTIFICADOR.2 and appearing to have a signature. On it, there was an identity document of (...) from which several data have been crossed out. Specifically, full surnames, date of issue and expiration, photograph, sex, and document number.

Finally, it is noted that on February 27, 2023, CREMA GAMES denied the claimant's access request due to their inability to sufficiently identify them.

At this point, this Agency wishes to remind that the right of access is a personal right and, as such, it is necessary to verify the identity of the person exercising it.

C/ Jorge Juan, 6
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28001 – Madrid
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25/32

In the present case, and based on what CREMA GAMES stated in its response to the information request and in its written allegations regarding the initiation agreement, the entity does not have sufficient means to correctly identify users exercising their rights concerning personal data protection, as the only data associated with the IDs are the IP address, MAC number, date and time of login to the game, and information about the game that does not refer to individuals. For this reason, the entity requested that the complainant provide additional information to verify their identification and confirm that they were indeed the holder of the usernames and “Tamer IDs” provided.

The fact that CREMA GAMES requested a copy of the complainant's identity document as a method of verification constitutes a limitation on the right of access; since none of the data contained in the document is held by the entity and would not serve to verify the identity of the interested party. As previously indicated, the correct way to verify the identity of the interested party in an online context is by using the digital authentication mechanism employed by the user. There is no justification for CREMA GAMES not properly addressing the right exercised by the complainant due to not having implemented such a mechanism.

Therefore, in accordance with the evidence available at this moment in the proposed resolution of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to CREMA GAMES for violation of Article 15

of the GDPR.

V

Classification of the infringement of Article 15 of the GDPR and qualification for the purposes of prescription

If confirmed, the aforementioned infringement of Article 15 of the GDPR could imply the commission of the infringement classified in Article 83.5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 72.1 "Very serious infringements" of the LOPDGDD indicates the following:

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26/32

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The obstruction or hindrance or the repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679; (...)"

VI

Proposal for sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the proposed resolution of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a). CREMA GAMES requested a copy of the complainant's identity documentation as a means of identification, when the data contained therein cannot be matched with those held by the entity.

Furthermore, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- The link of the infringer's activity with the processing of personal data (paragraph b). The main activity of CREMA GAMES consists of providing services related to information technology and computing, which involves the management and processing of personal data of a large number of users who play online.

The balance of the circumstances considered allows for an initial assessment of a fine of €5,000 (five thousand euros) for the infringement of Article 15 of the GDPR.

VII

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each

supervisory authority may “order the controller or processor of the data to...”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
27/32

treatment that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...”, in the resolution adopted, it is proposed to require CREMA GAMES to notify this Agency within one month of the adoption of the following measures, without prejudice to others that may arise from the instruction of the procedure: that it has provided due access to its personal data to the complainant, after making use of the appropriate authentication mechanism.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate further administrative sanctioning procedures.

In view of the above, the following

PROPOSAL FOR RESOLUTION

is issued:

That the Presidency of the Spanish Agency for Data Protection sanctions CREMA GAMES, S.L., with NIF B86562139, for an infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €5,000 (five thousand euros).

That the Presidency of the Spanish Agency for Data Protection orders CREMA GAMES, S.L., with NIF B86562139, that pursuant to Article 58.2.d) of the GDPR, within one month, it must prove that it has provided due access to its personal data to the complainant, after making use of the appropriate authentication mechanism.

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be set at €4,000 (four thousand euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

By virtue of this, you are notified of the above, and you are informed of the procedure so that within TEN DAYS you may state whatever you consider in your defense and present the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

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B.B.B.

INSPECTOR/INSTRUCTOR

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

28/32

ANNEX

Index of the file EXP202304518

05/04/2023 Identification of the LSA and the CSA of (...)

14/04/2023 01. IMI report

14/04/2023 Admission to processing

31/08/2023 Requirement CREMA to CREMA GAMES, S.L.

31/08/2023 RMC CREMA GAMES SL

02/10/2023 Mutual Assistance - Other requests from (...)

11/10/2023 Privacy policy CREMA

13/10/2023 Requirement CREMA to CREMA GAMES, S.L. 2

25/10/2023 Response to requirement from CREMA GAMES SL

20/12/2023 EDPB Guide on the right of access prior to March 28, 2023

20/12/2023 Dili advisor CREMA GAMES

21/12/2023 Info. previous actions.

05/04/2024 Draft. Agreement to initiate

08/05/2024 Agreement to initiate to CREMA GAMES, S.L.

21/05/2024 Allegations from CREMA GAMES SL

>>

SECOND: On March 19, 2025, CREMA GAMES proceeded to pay the sanction in the amount of €4,000.00 making use of the reduction provided for in the previously transcribed proposal for resolution.

THIRD: In the previously transcribed proposal for resolution, the facts constituting the infringement were established, and it was proposed that, by the Presidency, adequate measures be imposed on the responsible party to adjust its actions to the regulations, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...".

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

30/32

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction."

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified resolution proposal allowed for the voluntary payment of the proposed sanction, which would entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €4,000.00, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned resolution proposal, and before a resolution was issued by this authority, CREMA GAMES, on March 19, 2025, proceeded to make the voluntary payment, availing itself of the 20% reduction. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reduction shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/32

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure shall decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the resolution proposal transcribed in this resolution.

The sum of the aforementioned amounts yields a total of €5,000.00.

After CREMA GAMES, S.L. proceeded with the voluntary payment, although without acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPAC, to reduce the total mentioned by 20%, resulting in a final amount of €4,000.00.

The effectiveness of the aforementioned reduction is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202304518, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER CREMA GAMES, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution within 1 month from the date this resolution becomes final and enforceable.

FOURTH: TO NOTIFY this resolution to CREMA GAMES, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction

for voluntary payment upon the withdrawal or renunciation of any action or administrative appeal, this resolution shall be final in the administrative process and fully enforceable from its notification. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

32/32

Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1331-200325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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